SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Writ Petition (Civil) No. 1011 of 2022 **CNR: SCIN010010112022**

Date: 17 October, 2023 *Citation: (2023) 16 SCC 1*

CORAM: Hon'ble D.Y. Chandrachud, C.J., Sanjay Kishan Kaul, S. Ravindra Bhat, Hima

Petitioner: Supriyo @ Supriya Chakraborty & Another

- VERSUS -

Respondent: Union of India & Ministry of Law and Justice

DOMAIN: FAMILY LAW & MARRIAGE EQUALITY **STATUS: Good Law (5-Judge Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

There is no fundamental right to marry. An institution of marriage is created and regulated by positive state law. Courts cannot read words into the Special Marriage Act to legalize same-sex marriage without disturbing its statutory fabric.

STATUTES APPLIED: Section 4 SMA, Article 14, Article 19, Article 21

DISPOSITION: LEGISLATION ON SAME-SEX MARRIAGE LEFT TO PARLIAMENT

EXECUTIVE RATIO SUMMARY:

Five-judge Constitution Bench held by 3:2 majority that there is no unqualified fundamental right to marry under the Constitution and rewriting the Special Marriage Act to include queer couples falls strictly within the legislative domain of Parliament.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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